

Court No. - 36

Case :- WRIT - C No. - 2052 of 2015

Petitioner :- Mohd. Kasim

Respondent :- Paschimanchal Viddut Vitran Nigam Ltd. &
Another

Counsel for Petitioner :- R.P.S. Chauhan

Counsel for Respondent :- Pranjal Mehrotra

Hon'ble Vineet Saran,J.

Hon'ble Vivek Kumar Birla,J.

Heard learned counsel for the petitioner as well as Sri Pranjal Mehrotra, learned counsel appearing for the respondents and have perused the record.

The case of the petitioner is that he was alleged to be involved in the theft of electricity regarding which a criminal case was initiated against the petitioner. The petitioner has thereafter been acquitted by the trial court in the said criminal case. He now claims benefit of Clause 8.2 (x) of the U.P. Electricity Supply Code, 2005 and submits that the charges levelled against the petitioner may be withdrawn and his connection may be restored after his acquittal in the criminal case. Regarding the said grievance, the petitioner states that he has already filed representations/applications before the respondent no. 2, the Executive Engineer, which have yet not been decided.

Having heard learned counsel for the parties and considering the facts and circumstances of this case and with consent of the learned counsel for the parties, we dispose of this writ petition with the direction that in case with regard to his grievances made in this writ petition, the petitioner files a fresh application before the respondent no.

2, the Executive Engineer, Electricity Distribution Division, Chandausi, District Sambhal alongwith a certified copy of this order, the same shall be considered and decided, in accordance with law, by a reasoned and speaking order, as expeditiously as possible, preferably within a period of six weeks from the date of filing of the same.

With the aforesaid observations/directions, this writ petition is finally disposed of. No order as to costs.

Order Date :- 21.1.2015

p.s.

(Vivek Kumar Birla, J.)

(Vineet Saran, J.)